

26AVUD00060 26AVUD00060

County: los-angeles

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Case Number: 26AVUD00060 Hearing Date: September 3, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

DOROTHEA COHEN,

Plaintiff,

v.

DANIEL MCFATE, and DOES 1 through 10, inclusive,

Defendants.

Case Number 26AVUD00060

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: September 3, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is an unlawful detainer case arising from Defendant Daniel McFate's (Defendant) alleged refusal to exit real property owned by Plaintiff Dorothea Cohen (Plaintiff) and located at 1005 Justin Court, Lancaster, CA 93535 (the Property). Defendant Kaitlin McFate (hereinafter Claimant), wife of Defendant, moves to set aside entry of default and any default judgment entered against her.

On January 13, 2026, Plaintiff filed a complaint against Defendant, asserting four causes of action for (1) forcible detainer, and (2-4) three causes of action for unlawful detainer. Specifically, Plaintiff alleges that in April 2021, Plaintiff, who is disabled, hired Defendant as her caretaker by oral agreement and allowed him in exchange to reside with her on the Property. (Compl., ¶¶ 11-12.) On September 12, 2025, Plaintiff terminated Defendant's employment as her caretaker. (Id at ¶ 13.) On September 22, 2025, Defendant reentered the Property after having relinquished possession, continues to occupy the premises by force, has refused to leave despite Plaintiff's numerous requests to do so, and since his termination, has charged items to himself to Plaintiff's credit card. (Id at ¶¶ 3-5, 20, 27.)

On February 3, 2026, Defendant filed his answer, which asserts a specific denial of all causes of action and allegations, and alleges Plaintiff breached the warranty of habitability and filed the present action as retaliation. (Answer, p. 1, ¶¶ 2(b)(1)-(2), 3(a), (f).)

On February 3, 2026, Claimant, who resides at the Property, filed a prejudgment claim of right to possession.

On February 23, 2026, default was entered against Claimant.

On July 13, 2026, Plaintiff filed a motion for summary judgment against Defendant. The Court also held an OSC re dismissal for failure to prosecute. Claimant was present at the hearing and was informed that she was in default and would have to move to set aside entry of default if she wished to participate.

On July 28, 2026, Plaintiff's motion was granted. Defendant filed an opposition to the motion after the hearing, which the Court declined to consider. Attached to the opposition was the Declaration of Claimant, in which she claimed she had a lease agreement for the Property, but failed to attach the agreement.

On July 28, 2026, immediately after the Court granted Plaintiff's motion for summary judgment, Claimant filed the present motion to set aside entry of default and any default judgment.

On August 12, 2026, the Order granting the motion for summary judgment and judgment was entered, and it was ordered, adjudged, and decreed that judgment be entered in this case for Plaintiff and against Defendant, with default judgment against Claimant entered on February 24, 2026, that Plaintiff is entitled to restitution and possession of the Property with a writ to issue immediately, and that the agreement under which the Property is held declared cancelled.

On August 17, 2026, a writ of possession issued.

On August 20, 2026, Plaintiff filed an opposition.

No reply has been filed.

II. Request for Judicial Notice

Claimant Kaitlin McFate's Request for Judicial Notice – Claimant requests the Court take judicial notice of a number of documents filed in the present case. (Motion, p. 8:15-25.) Judicial notice of documents within this case is unnecessary. Further, Claimant's request is procedurally improper, as the request was contained within her motion and not set forth in a separate document. (Cal. Rules of Court, rule 3.1113(l) ["Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c)"].)

Claimant's request for judicial notice is DENIED.

III. Legal Standard

Standard for Motion to Set Aside Entry of Default – Per Code of Civil Procedure section 473(b), a court "may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect."

The general underlying purpose of Code of Civil Procedure section 473, subdivision (b) is to promote the determination of actions on their merits. (Even Zohar Const. & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 839.) However, the court only has broad discretion to vacate the entry of default, default judgment, or a dismissal where the moving party timely establishes a proper ground for relief. (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.) The moving party bears the burden of establishing that the default was the result of excusable neglect. (Marcotte v. Municipal Court (1976) 64 Cal.App.3d 235, 239.)

The party must seek such relief "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).)

IV. Discussion

Application – Claimant moves to set aside the entry of default taken against her, any default judgment, possession judgment, order, or writ entered against her as a result of that default, grant her leave to file the proposed answer submitted with the motion immediately upon entry of the order, to stay enforcement of any judgment or writ until the motion is determined, and grant other relief as is just, including a continuance of any merits proceeding to permit Claimant to participate pursuant to Code of Civil Procedure section 473, subdivision (b) and the Court's equitable power to relieve a party from a default caused by extrinsic mistake. (Notice of Motion, p. 2:2-19.)

Claimant argues that she did not ignore this action and acted before Plaintiff sought default, evidenced by her filing of a prejudgment claim of right to possession and a fee waiver. (Motion, p. 2:4-9.) The Court notes that Claimant was not a named Defendant in the complaint, so Plaintiff could not have moved for default prior to the filing of Claimant's prejudgment claim of right to possession. Claimant asserts that she prepared an answer which she attempted to file, but states the Clerk rejected the filing of the answer and instructed Claimant that she must wait for a hearing before an answer could be filed. (Motion, p. 2:9-14.) Claimant also argues that she relied on the Clerk's representation, but that the promised hearing never appeared on the docket, and that Claimant only recently learned of Plaintiff's reliance on her default at the hearing on Plaintiff's summary judgment motion. (Motion, p. 2:15-17, 3:18-19.)

a. Relief Under Code of Civil Procedure § 473(b)

As to Claimant's argument for relief under Section 473, subdivision (b), Claimant argues she took all steps a person intending to defend would reasonably do at the outset of this case, as she timely appeared, sought and obtained a fee waiver, and caused an answer to be prepared and presented for filing, and the only reason for her failure to file is that she was instructed by the Clerk that the filing of the answer was rejected pending a hearing which never materialized. (Motion, p. 4:23-5:5.) Claimant also argues this motion is timely brought within six months of entry of default and within weeks of Plaintiff's summary judgment motion, which expressly disclosed Plaintiff's position that Claimant had been defaulted. (Motion, p. 5:24-6:2.) Claimant asserts she has a meritorious defense and has supplied a verified proposed answer denying forcible detainer and alleging that she occupied the Property openly and with Plaintiff's knowledge and consent before the action was filed, she was never Plaintiff's employee or caretaker and the termination of Defendant's employment thus does not establish termination of Claimant's independent possessory status, she did not obtain or retain possession by force, menace, or threat, that the notices and service are disputed and may not establish legally sufficient termination as to Claimant, and that the Property had serious habitability issues. (Motion, p. 6:15-7:2.)

In opposition, Plaintiff argues that Claimant's five month delay in seeking relief was not reasonable, that she has failed to establish inadvertence, mistake, surprise, or excusable neglect, and that her story is not credible and the Court should exercise its discretion not to believe it, particularly because it is based on the Court Clerk purportedly offering legal advice, which is strictly prohibited, and in the absence of any evidence that Claimant ever presented an answer. (Opp., p. 3:18-19, 5:16-17, 6:7-18.)

As a preliminary matter and contrary to Claimant's representations set forth within the motion, Claimant has failed to provide a proposed answer as required for relief under Section 473(b), and the motion therefore must be denied on procedural grounds alone. (Code Civ. Proc., § 473, subd. (b) ["Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted"] (emphasis added)).

In any event, Claimant has failed to show that entry of default was due to mistake, inadvertence, surprise, or excusable neglect. Code of Civil Procedure section 473 "is a remedial statute to be 'applied liberally' in favor of relief if the opposing party will not suffer prejudice. Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails." (Minick v. City of Petaluma (2016) 3 Cal.App.5th 15, 25 (emphasis added).) "The burden of establishing excusable neglect is upon the party seeking relief who must prove it by a preponderance of the evidence." (Iott v. Franklin (1988) 206 Cal.App.3d 521, 528, citing Elms v. Elms (1946) 72 Cal. App. 2d 508, 519.)

The Court finds that Claimant has not made an adequate showing warranting relief. First, Defendant was unequivocally aware not only of the pending litigation, to which she joined herself as a Defendant, but also of the five day deadline to file an answer in this case. Claimant was served with the notice of unlawful detainer (eviction) lawsuit, which states in bold, red, large, underlined text "If you don't respond, you may lose automatically. If you ignore this, your landlord might evict you... The judge will not hear your side if you don't act now. If you want to respond, you can: ...Respond within 10 days. If you want to submit an Answer as your response, file Answer Form UD-105 by the deadline." On receipt, Claimant personally completed and filed the prejudgment claim of right to possession on February 3, 2026. This form expressly indicates that (1) Claimant understood that if she made this claim of possession, she would be added as a defendant to the action, and (2) Claimant understood that she would have five days (excluding court holidays) to file a response to the Summons and Complaint after she filed the claim form. (Prejudgment Claim, ¶¶ 9, 12, dated 2/3/26.) In failing to do so, Claimant asserts that she relied on the Clerk's representation that an answer could only be filed after a hearing. However, Claimant does not state what type of hearing she was waiting for, and admits that she never received any notice of a hearing and, after personally reviewing the register of actions and the docket in this action, was aware that no hearing had ever been noticed or set. Even if Claimant's recounting of events are true, Claimant does not claim that she ever inquired further, conducted any further research, made any other attempt to file an answer, or requested or reserved any hearing with the Court to involve herself in the action, despite allegedly being under the belief that a hearing was required before she could appear in the action. Claimant's assertion that she merely relied on a statement by the Clerk and took no further action in the weeks before, or in the over five months after, default was entered does not reflect any mistake, excusable neglect, inadvertence, or surprise.

Rather, the circumstances set forth by Claimant establish (1) Claimant's knowledge of the lawsuit and intentional status as a Defendant, (2) that she completed and filed a form expressly stating she had five days to file an answer or other responsive pleading, (3) that she took no affirmative action following the filing of her prejudgment claim, (4) that she was actively

monitoring the docket in this case and knew no hearing had ever been set, (5) that she was aware default had been entered against her, and (6) that even after default was entered, she took absolutely no action to request relief. These circumstances indicate an unreasonable lack of diligence in appearing despite full and complete knowledge of the deadline to file an answer and that she was in default, and the Court does not find this neglect excusable.

Second, the reasons given by Claimant are not satisfactory, and there exists reason to doubt the veracity of the statements contained in Claimant's motion. Without reaching the merits of whether the Clerk's statements could constitute legal advice in violation of the Court's ethics rules and California's rules regarding unauthorized practice of law, the Court is aware of no law or reason that would support the statement allegedly made by the Clerk regarding the necessity of a hearing before she could file her answer. The Court also notes the timing of the present motion gives rise to doubts as to whether the current motion is made in honest good faith. Default was entered against Claimant in February. The request for default was served on Claimant, and by her own admission she remained apprised of the register of actions within this case, and therefore was clearly aware that she was in default by February of 2026. It was further reiterated by the Court and through service of Plaintiff's motion for summary judgment on July 13, 2026 that Claimant had defaulted and would need to request relief if she wished to have an opportunity to participate. Yet without justification, Claimant made no request for relief from entry of default until July 28, 2026, the day Plaintiff's motion for summary judgment was granted against Claimant's husband. Claimant now also requests a stay in enforcement and a continuance of further proceedings, despite Claimant's appearances at prior hearings and complete knowledge of the case, the facts, and all actions taken to date. No reason is given for why any continuance would be necessary for Claimant's participation. These circumstances give rise to doubts as to the veracity of Claimant's allegations as to why she took no action to appear in this case, and casts doubt on whether Claimant's conduct was unintentional or represents willful filing tactics to prevent prompt and meaningful resolution of the action on the merits.

Third, to the extent that Claimant asserts her unfamiliarity with the law and reliance on the alleged statements of the Clerk constitute a basis for relief, the law is clear that "mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (*Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 984-985.) "Pro. per. litigants are held to the same standards as attorneys." (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) "The law does not entitle a party to proceed experimentally without counsel and then turn back the clock if the experiment yields an adverse result. One who voluntarily represents himself 'is not, for that reason, entitled to any more (or less) consideration than a lawyer. Thus, any alleged ignorance of legal matters or failure to properly represent himself can hardly constitute 'mistake, inadvertence, surprise or excusable neglect' as those terms are used in section 473. [Citation.]" (*Hopkins & Carley v. Gens* (2011) 200 Cal. App. 4th 1401, 1413.) Here, any ignorance alleged by Claimant of the consequences of default or the legal and procedural requirements for joining the action as a Defendant, timely appearing, avoiding entry of default, or requesting relief for default is inapposite and does not constitute grounds for relief under Section 473(b). The Court also is not convinced Claimant was ignorant of her responsibility to answer, as she was repeatedly put on notice.

In any event, as discussed, Claimant failed to file a proposed answer, which mandates denial of the request. Therefore, Claimant's request for relief under Section 473(b) is DENIED.

b. Equitable Relief From Default and Default Judgment

As to Defendant's request for equitable relief based on extrinsic mistake, Claimant argues that extrinsic mistake exists as she relied on the information provided by the Clerk that she could not file an answer in this action until a hearing had been held, which unfairly deprived her of a merits hearing despite her diligent attempts to timely become an answering party. (Motion, p. 7:24-8:2.) Claimant relies on *Rappleyea v. Campbell* (1994) 8 Cal.4th 975 to support her argument that her default was the result of extrinsic mistake and should be set aside, arguing that she reasonably believed the Court would issue a hearing date or further notice informing her when she could file an answer in this case. Claimant also states that she never received any notice of hearing and on review of the register of actions, she never saw any hearing or notice appear. (McFate Decl., ¶¶ 5-9.)

In opposition, Plaintiff argues Claimant is not entitled to equitable relief, as Claimant (1) has not provided a satisfactory excuse for failing to timely answer, as her alleged belief that she could not file an answer is contradicted on the face of Claimant's claim form, (2) failed to verify her belief despite having ample time to investigate the Clerk's alleged statement of law, which stood in direct contrast with the form filed by Claimant, (3) failed to attach an answer establishing a meritorious

defense or provide the alleged lease on which she bases her claim of right to the Property, and (4) failed to establish diligence in setting aside the default once discovered. (Opp., p. 7:10-8:10.)

The Court finds that for the reasons set forth by Plaintiff, Claimant has failed to make the requisite showing that vacating the default and default judgment is warranted.

The Court has the inherent authority to vacate a default and default judgment on equitable grounds such as extrinsic fraud or extrinsic mistake. (See *Pulte Homes Corporation v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 275.) However, once “a default judgment has been obtained, equitable relief may only be given in exceptional circumstances.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981.) Extrinsic mistake is “a term broadly applied when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits.” (Id. at 981.) The moving party must satisfy three essential and stringent requirements to obtain equitable relief on the grounds of extrinsic mistake after default judgment has been entered: (1) a meritorious defense; (2) diligence in seeking relief once the default is discovered; and (3) a satisfactory excuse for not presenting a defense to the original action. (Id. at 982.) The statutory time limits on relief under California Code of Civil Procedure sections 473, subdivision (b) and 473.5 do not apply, but once the purported extrinsic fraud or mistake is discovered, a party is expected to proceed diligently to seek relief. This requirement is inextricably intertwined with prejudice to the plaintiff. (Id. at 983-984.)

The Court finds that Claimant has failed to establish that all three requirements exist here. As to the first requirement establishing a meritorious defense, the moving party need only make a minimal showing and does not have to guarantee success or demonstrate with certainty that a different result would be obtained if the default judgment is vacated. (*Mechling v. Asbestos Defendants* (2018) 29 Cal.App.5th 1241, 1246.) The moving defendant only needs to “show facts indicating a sufficiently meritorious claim to entitle [it] to a fair adversary hearing.” (Ibid (citations omitted).) The Court notes that Claimant has not provided a proposed answer, nor has she ever presented any evidence of the existence of a written lease agreement with Plaintiff on which she bases her claim of right to possess and occupy Plaintiff’s Property. Claimant has never otherwise set forth the terms of the alleged agreement. The crux of Claimant’s defense is that she has a separate lease agreement. However, she has now on three separate occasions referenced a written lease agreement with Plaintiff without any evidence or description of the terms of said agreement. (See Prejudgment Claim Form, Claimant’s Declaration in Opposition to Plaintiff’s MSJ, Claimant’s Motion to Set Aside Default.)

As to the second and third requirements, for the reasons set forth above, the Court finds that Claimant has neither exercised diligence in seeking relief once the extrinsic mistake leading to default was discovered, nor provided a satisfactory excuse for not presenting her defense to the original action. Claimant was aware of her defaulted status in February of 2026, at which point she was put on notice that she failed to timely respond, and did not seek relief for almost six months. Whether Claimant was ignorant of the legal consequence of default is inapposite, as her status as a self-represented litigant does not absolve her of the consequences of her own failure to act. To the extent that Claimant argues that her reliance on the Clerk’s alleged statement that she could not file an answer before a hearing satisfies the third prong and constitutes a satisfactory excuse for not presenting a defense to the action, the Court rejects this argument. Claimant was on clear, unequivocal notice that she had five days to file an answer. She was also on notice that no hearing had been set. Claimant took no action to verify the procedural steps to answer, never requested a hearing, never inquired to the Court, and never attempted to refile or otherwise promptly present a defense.

Claimant argues that the policy in favor of trying cases on the merits warrants vacating default and default judgment. However, “the policy that the law favors trying all cases and controversies upon their merits should not be prostituted to permit the slovenly practice of law or to relieve courts of the duty of scrutinizing carefully the affidavits or declarations filed in support of motions for relief to ascertain whether they set forth, with adequate particularity, grounds for relief. [] When inexcusable neglect is condoned even tacitly by the courts, they themselves unwittingly become instruments undermining the orderly process of the law.” (*Barragan v. Banco Bch* (1986) 188 Cal. App. 3d 283, 301.) As discussed, the Court finds Claimant’s neglect inexcusable, and has reason to question the basis on which her extrinsic mistake argument rests. Furthermore, Claimant omits discussion of the conflicting policies of favoring finality of judgments and the disfavoring of equitable relief, based on the distaste for forfeiture of a judgment, which is vested personal property. (*Rappleyea*, supra, 8 Cal.4th at 982.) Here, granting relief would prejudice Plaintiff and deprive her of finality of the judgments already obtained by this Court. Plaintiff prosecuted her case for almost six months on the understanding that Claimant was in default and was taking no action to relieve the entry of default.

Finally, Claimant's reliance on *Rappleyea* is misplaced. In *Rappleyea*, the defendants resided in Arizona when served with a summons and complaint, chose to proceed in propria persona, and requested an Arizona lawyer telephone the Los Angeles Superior Court for information on filing procedures. (*Rappleyea*, supra, 8 Cal.4th at 978.) The clerk's office informed the lawyer's staff that the filing fee was \$89, and the defendants answered by mail, enclosing \$89. (*Ibid.*) However, it was undisputed that the clerk's office misadvised defendant's informal counsel and provided the incorrect filing fee for the answer of one defendant, while the correct fee for two defendants was \$159. (*Ibid.*) As a result of the clerk's error, the timely filed answer was rejected and returned for insufficient payment, and the defendants thereafter promptly refiled their answer with the correct fee. (*Ibid.*) However, before the defendants' second filing by mail was received and approved, the plaintiff had applied the court on the first possible day for entry of default against defendants, and default judgment was entered against defendants. (*Id.* at 979.)

The Court found that relief was warranted because the clerk's office misinformed defendants about the amount of money due for an answer by two defendants and because plaintiff's counsel misinformed the defendants about the legal effect of the resulting default. (*Ibid.*) Specifically, the Court made the following findings: (1) the policy of leaving judgments final was not implicated because the plaintiff did not obtain a default judgment until after defendants had already moved for and been denied relief from default; (2) the defendants provided a satisfactory excuse for failing to timely answer in the original action because the court never intended to have the defendants send the fee applicable to a sole defendant and thereby default, and thus the clerk's misunderstanding of the number of answering defendants constituted extrinsic mistake; (3) the defendants' answer responded to the allegations and the lawyer who informally aided the defendants declared under oath that they had a very good and justiciable defense to the claims, thereby satisfying the requirement of showing a meritorious defense; (4) prejudice to plaintiff was so lacking that the diligence required of defendants was minimal and relief was warranted. (*Id.* at 982-84.) The Court also noted that although the defendants did not move for relief from default for over a year after the action commenced, they were diligent enough to obtain relief from default because the plaintiff incorrectly told defendants they had forfeited their right to seek relief, the plaintiff had exhibited indifference in prosecuting his case, and the evidence established that the defendants' understanding of the legal consequences of default was confined to the boilerplate language on the face of the summons in a case with 12 named and 20 Doe defendants. (*Id.* at 984.) Upon the court informing defendants they might soon face a default judgment, they acted quickly, and the prejudice to the plaintiff in granting relief was 'nil.' (*Ibid.*)

Unlike *Rappleyea*, Claimant's assertions related to her communications with the Clerk are unsubstantiated, undocumented, disputed, and do not appear to be supported by law or logic. However, taking Claimant's assertions as true for the sake of argument, Claimant may have a persuasive argument, similar to the *Rappleyea* defendants, that the Clerk's inaccurate information provides her a satisfactory excuse for failing to timely answer. However, unlike the *Rappleyea* defendants, Claimant made no prompt effort, or any effort at all, to timely appear or remedy default despite apparently diligently reviewing the case register and apprising herself of upcoming hearings and actions taken. After default was entered, Claimant was allegedly on notice that she received incorrect information resulting in default and did not move to vacate the default or appear in the case. There is no evidence or allegation that Claimant was in any way misled by Plaintiff's counsel as to the effect of default or Claimant's right to seek relief therefrom. Claimant has not filed any proposed answer setting forth any defense at all, despite allegedly preparing an answer in February, and has not provided any information regarding the alleged lease between Claimant and Plaintiff that gives her any right to remain in possession of the Property. The only named Defendants in the present action are Claimant and her husband. Claimant's knowledge of the requirement that she file a responsive pleading within five days was not confined to boilerplate language on a civil summons, but was expressly set forth in the prejudgment claim form obtained, completed, executed, and filed by Claimant and set forth clearly on the notice of unlawful detainer (eviction) lawsuit served on Defendant, as were the consequences for failing to respond.

Accordingly, Defendant Kaitlin McFate has failed to establish grounds for relief under Code of Civil Procedure section 473, subdivision (b) or on equitable grounds. Therefore, the motion is DENIED.

V. Conclusion

Defendant Kaitlin McFate's Motion to Set Aside Entry of Default and Any Default Judgment is DENIED. Defendant Kaitlin McFate's Request for a Stay is DENIED